

the street by the means of the construction of a physical barrier...” (*Id.*, *supra*, 97 Cal.App.2d at 241. Emphasis added.) As the California Supreme Court thereafter noted, “[t]he distinctions between these various situations and their impact on the actual value of the property is simply one of degree” and no general rule can be laid down to cover all situations. (See *People v. Sayig* (1951) 101 Cal.App.2d 890, 905; *Bacich v. Board of Control of California* (1943) 23 Cal.2d at 343, 355.)

Based on the foregoing, the Court does not conclude that Shea will not suffer a substantial impairment of access as a matter of law.

4. The City’s Alternative Request

The City requests that, if the Court declines to rule on Issue No. 2 on the present record, the Court should bifurcate trial and try the substantial impairment issue to the Court before any jury trial on compensation. (Suppl. Reply, 7:1-20.) This is the general sequence of events that the Court understands applies, as the issue of substantial impairment is a matter of law for the Court. However, the City did not raise this alternative request with its original moving papers. Nor has Shea had an opportunity to respond to the request made for the first time through the City’s Supplemental Reply. As such, the Parties are directed to appear to discuss the matter with the Court.

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John Doe A.R. et al v. Brad Rowell et al

25CV001606

[1] MOTION TO BE RELIEVED AS COUNSEL (as to Plaintiff John Doe A.R.)

TENTATIVE RULING: On July 27, 2026 Counsel filed a Dismissal of Plaintiff John Doe A.R. the instant hearing is, therefore, MOOT.

[2] MOTION TO BE RELIEVED AS COUNSEL (as to Plaintiffs Jane Doe J.M. and John Doe M.W.)

TENTATIVE RULING: The motion is GRANTED.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

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Mayra Aguilar v. General Motors LLC

25CV001964